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UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF VIRGINIA

Civil Action No. SYN-WDVA-25-CV-0733

Memorandum Opinion and Order Denying Officer Rusk's Motion for Summary Judgment

Entered January 9, 2026, by the Honorable Elaine Mercer, United States District Judge.

Officer Nolan Rusk seeks summary judgment and qualified immunity on Mara Ellison's remaining Fourth Amendment excessive-force claim. The motion is denied.

The Court reaches two distinct conclusions. First, a genuine dispute exists over historical facts central to threat and resistance. A jury could find that Ellison only recoiled and pulled from a painful wrist grasp, or it could accept Rusk's account of a forearm strike and movement toward his duty belt. The recordings do not resolve that conflict. This is an evidentiary-sufficiency ruling, not a finding that either account occurred.

Second, accepting Ellison's supported version for present legal analysis, Rusk violated a clearly established right. An officer may not use a five-second drive-stun cycle and forcible takedown against an unarmed, distressed welfare-check subject who pulls but does not strike, grab, flee, reach toward equipment, or pose immediate danger. This legal holding is expressly conditional on the stated facts.

Opinion — procedural and claim posture

Ellison originally sued Rusk, the City of Alder Creek, and Chief Samuel Orton. The amended complaint removed the City and Orton and left one § 1983 claim against Rusk individually. It alleges excessive force during a February 3, 2025 seizure at Larkspur Court Apartments. Officer Priya Vega is a witness, not a defendant.

Discovery included the welfare-call and dispatch record, police reports, medical materials, two body-camera exports, device data, photographs and timing exhibits, witness depositions, and three expert submissions. The parties stipulated to authenticity of specified media while preserving interpretation and evidentiary objections. Their joint chart identifies what each source can and cannot establish.

Rusk moved on November 21, arguing objective reasonableness and qualified immunity. Ellison opposed on December 12 and submitted her response to his fact statement. Rusk replied on December 23. No party requested an evidentiary hearing, and the record is adequate for Rule 56 analysis.

Because the individual immunity defense can protect against trial, the Court addresses both the constitutional and clearly-established-law prongs rather than denying the motion with an unelaborated reference to disputed facts.

Opinion — agreed chronology

Iris Ellison called 911 at 19:42:11 seeking help for her sister's medication and mental-health crisis. She reported no weapon, violence, threat, or crime. Dispatcher Lena Cho transmitted a welfare check at approximately 19:47:36. Rusk arrived near 19:52:14 and contacted Ellison around 19:52:48 in the Building C exterior breezeway.

Ellison was seated with empty hands visible. She appeared distressed and did not immediately follow every direction. Rusk grasped and restrained her wrist at approximately 19:53:02. He concedes a seizure began no later than that physical control.

During the next seconds, the parties' descriptions diverge. The audio includes “stop pulling” and “you're hurting me” at about 19:53:11. Rusk used a conducted-energy weapon in drive-stun mode while forcing Ellison down. Device data record one cycle from approximately 19:53:16 through 19:53:21. The camera view materially clears around 19:53:22; handcuffing was completed near 19:53:37; and no second cycle or post-cuff strike occurred.

Paramedic Mateo Cole assessed Ellison. The fixed medical findings are a wrist abrasion, two superficial contact burns, shoulder strain, and no fracture.

Opinion — competing historical accounts

Ellison says Rusk's wrist hold caused pain and she recoiled and pulled. She denies striking his forearm, touching or reaching toward the duty belt, trying to flee, or threatening anyone. She gave the same essential denial shortly after the encounter and during sworn testimony.

Rusk says the movement was active twisting, that Ellison struck his forearm, and that a hand moved toward equipment on his belt. He states that the strike and reach created an immediate need to interrupt access and obtain control. He reported the account contemporaneously and repeated it under oath.

Vega saw body movement but did not reliably see the hands during the decisive seconds. She cannot confirm either the alleged strike or the alleged reach. She did not see a weapon or hear a verbal threat. Rusk reported soreness but sought no hospital care. That fact does not disprove contact; it simply does not eliminate the conflict.

Both accounts are internally possible on this record. The Court may not select Rusk's because he was the officer, select Ellison's because no weapon was found, or average them into an undefined form of dangerous “resistance.”

Opinion — body-camera and audio evidence

Sergeant Lila Grant's custody record and Professor Adrian Crane's analysis support authenticity of the officer-camera exports. Crane found no cut or inserted segment and documented a common event timeline. Authenticity, however, does not make the field of view complete.

From approximately 19:53:08 through 19:53:22, Rusk's camera is blocked by close bodies and clothing. Vega's angle is obstructed by the railing, Rusk, and the participants' positions. No continuous, reliable view shows Ellison's hands relative to Rusk's forearm and belt. Slowing or brightening recorded pixels cannot reveal an object behind another object, and generated frames would not be evidence.

The audio establishes that Rusk commanded Ellison to stop pulling and that she complained of pain. It does not independently depict a strike or reach. Unattributed movement sounds cannot be assigned to a forearm, equipment, railing, or shoe with confidence.

This is not a recording that blatantly contradicts the nonmovant under *Scott v. Harris*, 550 U.S. 372 (2007). It leaves the decisive physical facts for ordinary Rule 56 treatment.

Opinion — Rule 56 evidentiary-sufficiency ruling

Summary judgment is available only when no genuine dispute of material fact exists. Fed. R. Civ. P. 56(a). The Court views supported evidence and reasonable inferences for Ellison, without weighing testimony. *Tolan v. Cotton*, 572 U.S. 650, 656–60 (2014).

Whether Ellison struck Rusk and moved toward his belt is material. If those acts occurred and were reasonably perceived, they would substantially increase the immediate safety interest. If they did not, the force answered only distress, noncompliance, and pulling from wrist control.

A reasonable jury could credit Ellison. Her account is sworn, remained materially consistent, and is not contradicted by a clear recording. Vega cannot see the hands well enough to reject it. The dispatch context and absence of a weapon provide additional, though not conclusive, support. A jury could also credit Rusk. Rule 56 does not ask the Court which result seems more likely.

Accordingly, Rusk's request to establish the strike, reach, and immediate danger as undisputed is denied. The Court makes no finding that those acts did or did not occur.

Opinion — Fourth Amendment framework

Objective reasonableness governs force used to effect a seizure. *Graham v. Connor*, 490 U.S. 386, 395–97 (1989). Relevant considerations include the severity of suspected conduct, immediate threat, resistance or flight, force magnitude, officer and subject circumstances, and the sequence leading to force. The analysis permits reasonable split-second decisions without using hindsight.

This encounter began as a noncriminal welfare check. No offense, weapon, threat, or flight was reported or observed before wrist control. Ellison's distress required attention but did not itself create danger. Two officers were present.

Resistance must be described with care. Failure to comply, pulling from a grip, active striking, and attempted weapon access are not equivalent. *Armstrong v. Village of Pinehurst*, 810 F.3d 892, 901–05 (4th Cir. 2016), explains that even physical resistance supports force in proportion to the danger it poses, not by a binary label alone.

The drive-stun mode deliberately imposed pain for five seconds while Rusk forced Ellison down. One cycle is less force than repeated activations, but the absence of repetition does not decide whether initiating the cycle was reasonable.

Opinion — constitutional holding on assumed facts

For this part of the opinion only, the Court assumes: Ellison was unarmed and distressed; she recoiled and pulled because wrist control hurt; she did not strike, grab, flee, or reach toward Rusk's equipment; and she did not pose an immediate safety danger. These are Rule 56 assumptions, not findings for trial.

On those facts, the governmental interest was modest. Officers could maintain control and complete a lawful welfare assessment, but they were not confronting a violent offense, weapon access, or dangerous attack. Pulling justified some responsive control; it did not justify a substantial pain application untethered from immediate risk.

The five-second drive stun and forcible descent were disproportionate. Rusk had Vega's assistance, and the record permits communication, adjusted grip, spacing, and repositioning as realistic options. The Fourth Amendment does not impose a least-intrusive-means test, yet available tactics help reveal whether the chosen escalation matched the need.

The Court does not rely on injury alone. The abrasion, burns, and strain confirm meaningful physical effects, while objective unreasonableness follows from the mismatch between imposed force and assumed danger. Ellison has shown a constitutional violation on her version.

Opinion — clearly established law

The right is defined as freedom from a five-second drive-stun cycle and forcible takedown during a welfare seizure when an unarmed, distressed person pulls from wrist control but does not strike, grab, flee, reach for equipment, or present immediate danger. That formulation is particularized without importing Rusk's disputed history.

By February 3, 2025, Fourth Circuit precedent placed the rule beyond debate. *Armstrong* held that serious force is disproportionate to resistance that creates no immediate danger, specifically in a protective mental-health seizure. 810 F.3d at 905–09. Although the officers there received immunity for their 2011 conduct, the published decision supplied prospective notice.

Smith v. Ray, 781 F.3d 95, 102–04 (4th Cir. 2015), denied immunity for force against a person whose modest movement did not make her dangerous. *Meyers v. Baltimore County*, 713 F.3d 723, 733–35 (4th Cir. 2013), ties taser justification to continuing threat. *Yates v. Terry*, 817 F.3d 877, 884–88 (4th Cir. 2016), confirms fair notice concerning taser use against a nonthreatening subject.

Opinion — Rusk's distinctions do not warrant immunity

Rusk notes that the cited decisions involve different device modes, repeated applications, traffic or arrest settings, or stationary resistance. Exact factual identity is not required when precedent makes the constitutional answer apparent. The cases establish a particular relationship: painful or injurious force must correspond to immediate threat and the degree of resistance.

The assumed facts fall on the clearly prohibited side. Contact mode differs mechanically from probe deployment but intentionally causes pain. A single cycle differs from several, yet one unjustified cycle is not constitutionally free. The apartment railing provides context without creating danger when the assumptions exclude flight and threatening movement.

Rusk's strongest distinction is the asserted forearm strike and belt reach. If a jury accepts those events, the reasonableness analysis may change. They cannot support immunity at summary judgment because this legal inquiry assumes they did not occur. A court may not obtain factual particularity by defining the right around the movant's contested evidence.

Every reasonable officer had fair notice that, under the stated no-danger conditions, electrical pain and a takedown exceeded force proportionate to pulling from a grip.

Opinion — explicit collateral-order boundary

The Court marks the boundary between its rulings. The first is evidentiary: Ellison has produced enough evidence for a jury to decide whether she struck Rusk, reached toward his belt, or instead only recoiled and pulled. That determination concerns evidence sufficiency and historical fact. It does not decide qualified immunity as an abstract legal matter.

The second is legal: on the plaintiff-favorable facts stated in this opinion, the force violated clearly established law. That conclusion does not declare those facts true. If a jury later finds the strike and equipment reach occurred as Rusk says, the ultimate result may differ.

This distinction tracks *Johnson v. Jones*, 515 U.S. 304, 313–20 (1995), *Winfield v. Bass*, 106 F.3d 525, 529–30 (4th Cir. 1997) (en banc), and *Culosi v. Bullock*, 596 F.3d 195, 201–03 (4th Cir. 2010). An interlocutory appeal may present a legal immunity question on assumed facts; it may not ask an appellate court to reweigh this record and decide whose account occurred. This Court states the separation to preserve, not expand, that jurisdictional limit.

Opinion — order and further proceedings

Officer Rusk's motion for summary judgment is DENIED. Specifically:

1. The Court denies Rusk's request for judgment based on his asserted strike, belt reach, and immediate threat because those historical facts are genuinely disputed.
2. The Court holds that, on Ellison's supported version, one five-second drive-stun cycle and a forcible takedown violated the Fourth Amendment and a right clearly established by February 3,
3. The Court does not find that Ellison's version actually occurred, reject Rusk's credibility, or resolve the disputed evidentiary facts for trial.
4. No separate final judgment shall enter. The sole claim remains pending, subject to further proceedings and any lawful interlocutory review. The parties shall preserve the native media, device data, and agreed presentation restrictions.

The Clerk is directed to transmit this memorandum opinion and order to counsel and retain the motion as resolved on the district docket. Any later record designation must include the complete motion, response, reply, fact statements, joint media chart, and this opinion so that assumed facts cannot be detached from the evidentiary ruling.

It is so ORDERED.

Elaine Mercer, United States District Judge